

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MARY POWER,

Plaintiff,

**SUMMONS WITH  
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPT., POLICE OFFICER ANDREW  
CARDENAS, TAX ID #964423 AND POLICE OFFICER  
JOHN DOE (A FICTITIOUS NAME BECAUSE HIS  
IDENTITY IS UNKNOWN), BOTH INDIVIDUALLY  
AND AS POLICE OFFICERS OF THE 73RD PRECINCT,

Defendants.  
-----X

Index No.:

Date Purchased:

Plaintiff designates Kings  
County as the place of trial.  
The basis of the venue is that  
Kings County is the place  
where the cause of action  
arose.

To the above named Defendant(s):

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
This 27<sup>th</sup> day of January, 2021

/s/ ROYCE RUSSELL, ESQ.  
Royce Russell, Esq.  
R-SQUARE, ESQ. PLLC  
112 West 34<sup>th</sup> Street 18Fl  
New York, NY 10120  
(718) 785-8890

**Defendants address:**

City of New York  
c/o Corporation Counsel,  
City of New York  
100 Church Street  
New York, New York 10007

The New York City Police Department  
1 Police Plaza  
New York, New York 10038

Police Officer Andrew Cardenas  
Tax ID #964423  
c/o 73<sup>rd</sup> Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212

Police Officer John Doe  
(A Fictitious Name Because his Identity is Unknown)  
c/o 73<sup>rd</sup> Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212

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Defendants.

-----X

The Plaintiff, Mary Power, and by her attorney, Royce Russell, R-Square, Esq. PLLC.,  
complaining of the Defendants respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York hereinafter referred to as "NYPD" including all the police officers thereof.
3. That at all times hereinafter mentioned, specifically on the 21<sup>st</sup> day of February 2020, at approximately 7:30 p.m., at the location of 277 Grafton Street, Brooklyn, New York 11212 in the County of Kings within the State of New York hereafter referenced to as the "location" the Plaintiff was lawfully present and had not committed a crime.
4. Upon information and belief, that at all times hereinafter mentioned, specifically on the 21<sup>st</sup> day of February 2021 at approximately 7:30 p.m., Police Officers Andrew Cardenas Tax ID# 964423, hereafter referred to as "Cardenas" and Police Officer John Doe hereinafter referred to as "Doe" both referred collectively as "Officers/Defendants" were screened, interviewed, hired by the "City", trained by the "City", was retained by the

“City”, and was investigated, monitored, supervised and/or disciplined by the “City”.

5. That the Plaintiff filed and served a notice of claim on or about March 20, 2020.
6. The City acknowledged receipt of the notice of claim and held a 50(h) hearing of Mary Power on June 30, 2020.
7. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustment or payment thereof.
8. That this action is commenced within one year and 90 days after the cause of action arose.
9. Mary Power is a United States Citizen and is referred hereinafter as “Mary”.
10. Mary at all relevant times hereunder resides at 277 Grafton Street, Brooklyn, N.Y. 11212.
11. Upon information and belief, at all times hereinafter mentioned, and specifically on the 21<sup>st</sup> day of February 2020, at approximately 7:30 p.m., “Cardenas” and “Doe”, collectively hereafter referred as “Officers/Defendants”, were present at or near the vicinity of 277 Grafton Street, Brooklyn, N.Y. 11212 and were acting within the scope of their employment and under the direction of the “City”, and “NYPD” as their agents, servants and/or employee(s).
12. That the “Officers”, individually and collectively, at all relevant times hereunder, acted as a police officer, and was required to follow the rules and regulations as contained in the New York City Patrol Guidelines.
13. That on February 21, 2020, the Plaintiff was lawfully in/at her residence located at 277 Grafton Street when she was alerted by her tenant’s son that a Jamaican male was trying to gain access to her residence in order to hang signs.
14. That tenant refused said male entry and called the Plaintiff to the front of her residence. The tenant and son have been tenants with the Plaintiff for several years, as the Plaintiff owns the property of 277 Grafton Street, Brooklyn, New York 11212.
15. The Plaintiff went outside her residence but stayed within her property line, divided by a gate with a swinging door, while she observed the unknown male with the Defendants and other officers.
16. All of the “Defendants/Officers” were white as well as the other officers at the location.

17. After observing the “Defendants/Officers” in conversation with the unknown male, “Doe” then questioned Plaintiff as to who owned the property.
18. Plaintiff showed “Doe/Cardenas” her deed to the property by way of her cell phone by logging onto the Department of Finance website.
19. The Defendants acknowledged the deed but then focused on the argument between the tenant’s son and the unknown male.
20. The “Defendants/Officers” appeared to ignore the Plaintiff and turned their attention to Plaintiff’s tenant’s son ordering him to be quiet and go inside. The tenant son continued to express himself by stating that the unknown man should be arrested for trespassing.
21. The tenant’s son was then ordered by his mother to go inside and upstairs for which he complied.
22. At this time, Plaintiff requested the “Defendants/Officers” to remove themselves from her property since they were not going to make an arrest for trespassing.
23. Plaintiff then proceeded back into her home, however, upon entering her home she turned around and the “Defendants/Officers” were directly behind her in her vestibule.
24. Plaintiff turned around and before she could say anything she was hit in the head and arms forcibly place behind her back as they approached the son of the tenant who was inside his/Plaintiff’s stairway heading into his apartment.
25. Plaintiff was placed in handcuffs as the son of the tenant, upon information and belief, videoed the police battery, assault and the false arrest of Plaintiff.
26. Upon information and belief, the bald headed “Defendant/Officer” was the most aggressive as the other “Defendant/Officer” failed to intervene as to the battery, assault and false arrest of the Plaintiff.
27. The “Defendants/Officers” never articulated their intentions or the reason for their illegal entry onto Plaintiff’s property and then her residence or the bases of any arrest.
28. The Plaintiff had not committed any crime nor did her tenants.
29. Plaintiff never resisted but repeatedly asked “If she was being arrested and why”.
30. “Defendants/Officers” replied repeatedly that she was not being arrested but nonetheless

she was transported to the 73<sup>rd</sup> precinct, remained handcuffed, searched, refused a call and detained in a holding cell until issued a Summons/DAT.

31. During the transportation of the Plaintiff, she asked that someone stay with her minor kids of 10 and 12 years of age, however, "Defendants/Officers" displayed indifference as to Plaintiff's children wellbeing.
32. Plaintiff was transported barefoot and without a coat as she was forcibly taken from her home in the cold February month.
33. Plaintiff was eventually issued a Summons for "Refusal" for which she had to retain Counsel and appear in Court for which the case was dismissed for "Failure to file a legally acceptable accusatory instrument with the Court."
34. "Defendants/Officers'" actions on February 21, 2020 were intentional as well as the filing of a legally insufficient document with the court.
35. Upon the Plaintiff's release, an unknown Police Officer called her a cab so she could return home.
36. As a result of her false detention, arrest, imprisonment, battery and assault Plaintiff suffers from sleeplessness, anxiety, hyper vigilance and her children have been traumatized in that they will not sleep alone and are wetting their beds when they sleep alone - all conduct never displayed prior.
37. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting within the scope of their employment.
38. The City of New York, their agents, servants or employees intended to confine Plaintiff; Plaintiff was conscious of confinement and did not consent thereto, and the confinement was not otherwise privileged, all without just right, probable cause and without grounds therefore.
39. The City, their agents, servants and employees as aforementioned committed a battery upon Plaintiff without just cause or justification, and in an excessive manner and force, intentionally caused physical contact, causing serious injuries to the Plaintiff's mind and body.
40. Plaintiff was aware of the threat of imminent harm and unconsented contact and actually feared it while the Defendants had the apparent ability to cause said unlawful and

unconsented contact and harm and actually caused it to occur.

41. Plaintiff was and is at all times innocent of all charges and had committed no crime.
42. Plaintiff sustained physical and emotional injury as a result of the “Defendants/Officers” conduct.
43. That this action falls within one of the exceptions of CPLR 1601.

**AS AND FOR A FIRST CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF AGAINST ALL NAMED DEFENDANTS**  
**FOR FALSE DETENTION/IMPRISONMENT**

44. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "43" with the same force and effect as if more fully and at length set forth herein.
45. That beginning on or about the 21<sup>st</sup> day of February 2020, at the approximate hours of 7:30 p.m. at or near the vicinity of 277 Grafton Street Brooklyn, New York 11212 and continuing at 1470 East New York Avenue, Brooklyn, New York, 73<sup>rd</sup> Pct., until released respectively, the defendants, and their agents, servants and/or employees intentionally handcuffed and imprisoned the Plaintiff, without any just cause or grounds therefore and held her against her will under full force of arms.
46. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds or any cause to believe that the Plaintiff was guilty of any crimes, or that the Defendants had just cause to imprison the Plaintiff.
47. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her arrest or imprisonment by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
48. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; in that the Plaintiff was conscious of her confinement; the Plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.
49. That by reason of the aforesaid false imprisonment and detention of the Plaintiff, she was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiff has been otherwise damaged.

50. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SECOND CAUSE OF ACTION**  
**FOR FALSE ARREST AGAINST ALL NAMED DEFENDANTS**

51. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "50" with the same force and effect as if more fully and at length set forth herein.

52. That on the 21<sup>st</sup> day of February, 2020, at approximately 7:30 p.m. the defendants, and their agents, servants and/or employees intentionally and maliciously arrested, handcuffed, detained and imprisoned Plaintiff, without any just cause or grounds therefore, and held her against her will under full force of arms until she was released from the 73<sup>rd</sup> Pct.

53. That the Plaintiff was falsely arrested, imprisoned and accused by the defendants, their agents, servants and/or employees of having committed the crimes of "Refusing".

54. That said arrest was caused by the defendants and their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the plaintiff was guilty of any crime.

55. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her arrest by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.

56. The defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuff and arrest the Plaintiff; the Plaintiff was conscious of her arrest and confinement; the Plaintiff did not consent to her arrest and confinement; and the arrest and confinement was not otherwise privileged.

57. That by reason of the aforesaid false arrest and false charges filed against her, the Plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiff has been otherwise damaged.

58. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.



**AS AND FOR A THIRD CAUSE OF ACTION**  
**ON BEHALF OF THE PLAINTIFF**  
**AGAINST ALL NAMED DEFENDANTS FOR ASSAULT AND BATTERY:**

59. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "58" with the same force and effect as if fully set forth herein.
60. Upon information and belief, on or about the 21<sup>st</sup> day of February, 2020, commencing at the approximate hour of 7:30 p.m. at or near the vicinity of 277 Grafton Street, Brooklyn, New York 11212, "Defendants/Officers", while acting within the scope of their employment as police officers and as agents for the defendant the "City", without just cause or provocation and with great force and violence, struck, slapped forcibly grabbed, slammed, searched and arrested the Plaintiff.
61. Defendants did not explain why the Plaintiff was being arrested the entire time she was in custody.
62. The Plaintiff was searched twice and detained handcuffed in a holding cell.
63. That the defendants, their agents, servants and/or employees, including but not limited to "Officers" were acting as an agent on behalf of the defendant "City", within the scope of their employment, intentionally, willfully, and maliciously battered and assaulted the Plaintiff, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact with the Plaintiff and intentionally did an act which threatened to and did cause such contact to the Plaintiff. That said acts caused apprehension of such offensive contact to the Plaintiff, and "Defendants/Officers" in a hostile and/ or offensive manner touched and beat the Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such batter in and about her body and limbs.
64. That the "Officers" used excessive and/or unreasonable force to effectuate the Plaintiff's arrest.
65. That said acts occurred within the scope of the police officers' employment with the "City"
66. That by reason of the aforesaid intentional battery and assault, the Plaintiff suffered and continues to suffer from physical and psychological injuries and were rendered sick, sore, and lame, and among other things suffered conscious pain and suffering, and that she was otherwise damaged.

67. That by reason of the aforesaid battery and assault, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION**  
**ON BEHALF OF THE PLAINTIFF AGAINST THE DEFENDANTS**  
**FOR MALICIOUS PROSECUTION**

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "67" with the same force and effect as if more fully and at length set forth herein.
69. The "Defendants/Officers" filled out false police reports and issued a Summons/DAT to the Plaintiff for the purpose of prosecuting her for the charge that they knew she did not commit and/or does not exist.
70. The "Defendants/Officers" took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the Plaintiff and the injuries that she sustained at the hands of the police.
71. The Plaintiff was at all times innocent of any crime charged.
72. That due to the malicious prosecution, the Plaintiff was caused to be in conveyance and had to retain legal representation to defend herself.
73. That by reason of the aforesaid malicious prosecution, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION**  
**ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE**  
**AGAINST THE "CITY" THE PLAINTIFF ALLEGES:**

74. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "73" with the same force and effect as if more fully and at length set forth herein.
75. That the CITY and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the Defendants named herein.

76. That as a result of their negligence, the abovenamed Plaintiff was battered, assaulted, falsely detained, falsely arrested, falsely imprisoned, illegally seized, illegally searched, and had her constitutional and civil rights violated.
77. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR VIOLATION  
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER  
42 U.S.C. 1983 AGAINST THE CITY OF NEW YORK**

78. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "77" with the same force and effect as if more fully and at length set forth herein.
79. That upon information and belief, on or about approximately 21<sup>st</sup> day of February, 2020, commencing at the approximate hour of 7:30 p.m. at or near the vicinity of 277 Grafton Street, Brooklyn, New York 11212, and continuing to 1470 East New York Avenue, Brooklyn, New York, 73<sup>rd</sup> Pct., "Defendant/Officers" were present as part of their regular course of business with the City of New York.
80. That Plaintiff was lawfully present at the vicinity of 277 Grafton Street, Brooklyn, New York 11212.
81. That the "Defendants/Officers" without probable cause or reasonable suspicion, detained, arrested and imprisoned the Plaintiff.
82. That the Plaintiff was battered, assaulted, mistreated, forcibly grabbed, slammed, struck, handcuffed searched and imprisoned by the "Defendants/Officers", acting as an agent, servant and/or employee for Defendant City, without provocation, to handcuff, seize and arrest the Plaintiff.
83. That all acts committed by the "Defendants/Officers" and other agents, servants, and/or employees and/or agents of the defendant "City", were committed within the scope of their employment and under color of law, and while said officer was acting under the custom, policy, rules and/or regulations of the City.
84. That said acts constituted an illegal seizure of the Plaintiff and deprived the Plaintiff of her

rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

85. That said acts constituted cruel and unusual punishment.
86. That said acts violated the Plaintiff's rights to due process of law.
87. That the defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and /or police practices which included illegal seizures, false arrests, condoning or tolerating excessive or arbitrary use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to properly supervise, train, investigate or discipline officers; engaging in a pattern of falsely accusing individuals who were victims of excessive use of force with having committed a crime to cover up illegal police conduct; and engaging in police cover-up, any and for all of the above contributing to plaintiffs' false arrest, and prosecution, and injuries.
88. The City negligently trained, retained, retrained, supervised, disciplined, monitored and/or investigated the defendant officers, when, upon information and belief they had knowledge of their violent propensities and prior bad acts.
89. The Defendants' actions on February 21, 2020 were performed under the color of the policies, statute, ordinances, rules and regulations of the City of New York.
90. That the Plaintiff did not commit any illegal act, either before or at the time they were falsely arrested and imprisoned, battered, assaulted, and deprived her of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.
91. That by reason of the aforesaid, the Plaintiff was injured in mind and body, and she was damaged.
92. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SEVENTH THROUGH EIGHTH CAUSE OF ACTION**  
**ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C.**  
**SECTION 1983, BY “CARDENAS” AND “DOE” EACH IN HIS INDIVIDUAL**  
**CAPACITY AND AS AN AGENT OF THE CITY OF NEW YORK**

93. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "92" with the same force and effect as if more fully and at length set forth herein.
94. That at all times hereinafter mentioned, “Defendants/Officers” were employed by the defendant The City of New York and/or The New York City Police Department and each was acting under the color of his official capacity and their acts and actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
95. That at all times hereinafter mentioned, the “Defendants/Officers” acted pursuant to orders and directives from defendant, The City of New York.
96. That during all times hereinafter mentioned, “Defendants/Officers” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they were acting under the color and pretense of law, and engaged in the illegal conduct set forth in this complaint to the injury of the Plaintiff, and deprived her of the rights, privileges and immunities secured to her by the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and/or Section 1986.
97. That the unlawful and illegal conduct of the “Defendants/Officers” deprived the Plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:
- a) The right of Plaintiff to be secure in her person and effects against unreasonable search and seizure, and the right not to be subjected to excessive force, under the Fourth and Fourteenth Amendments to the Constitution of the United States;
  - b) The right of Plaintiff to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States;
  - c) The right to be free of cruel and unusual punishment;

- d) The right not to be discriminated against based on race, age or creed;
  - e) The right to prompt and necessary medical attention; and
  - f) The right to due process of law.
98. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of Plaintiff's person, her false arrest and false imprisonment, battery and assault, the "Defendants'/Officers'" conspiracy to violate the Plaintiff's due process of law and the malicious prosecution of the Plaintiff, "Defendant/Officers", violated Plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to them in the Constitution of the State of New York, and laws thereto, the "Defendant/Officers" officers violated 42 U.S.C. §1983.
99. That as a direct proximate result of the defendants' actions, the Plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
100. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffer and upon information and belief, will continue to suffer great physical and mental pain, and she has expended and incurred divers sums of money in an effort to cure herself of said injuries, to extricate herself from the indignities and humiliation fostered upon them by the actions of the "Defendant/Officers", individually and collectively.
101. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdiction of the lower courts, and seek compensatory damages, plus, punitive damages, costs, attorneys' fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A NINTH THROUGH ELEVENTH CAUSES OF ACTION:**  
**FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS**  
**UNDER 42 U.S.C. 1983, 1985 AND 1986 AGAINST THE CITY OF NEW YORK**

102. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "101" with the same force and effect as if more fully and at length set forth herein.

103. That on or about the 21<sup>st</sup> day of February, 2020, at approximately 7:30 p.m. at or near “location,” the “Defendants/Officers” were present thereat as part of their regular and official employment as Police Officers for the Defendant, “City”.
104. Plaintiff was lawfully and properly thereat when the “Defendants/Officers” acting as agents, servants and/or employees of the Defendant “City”, forcibly grabbed, struck battered, assaulted, slammed, handcuffed searched seized arrested and imprisoned, absent just cause, provocation or reason. The Plaintiff had not engaged in any criminal conduct or suspicious activity.
105. The Plaintiff was retaliated against by the Officers who illegally, seized, searched, battered, assaulted, arrested and imprisoned her because she asked the Defendants/Officers to make an arrest of a trespasser or leave her property.
106. Upon information and belief, the Officers were required to fill out a stop, question and frisk report.
107. Upon information and belief, they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.
108. Defendants failed to activate their respective body cameras to record the police encounter with the Plaintiff.
109. Upon information and belief, the Officers fabricated a reason for arresting the Plaintiff.
110. Further, the other named Officers, present at the Plaintiff’s arrest, failed to report the false arrest.
111. Likewise, when the “Defendants/Officers” were abusive to the Plaintiff, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.
112. Upon information and belief, to date no disciplinary action has been taken against the offending Officers for engaging in said conduct or for failing to intervene, stop it or report it or have their body cameras activated at the time of the incident concerning the Plaintiff.
113. That in order to cover up their misconduct, the Officers individually and/or collectively, conspired to file false police reports, give false statements and/or sign a false Criminal Court Complaint for the purpose of falsely imprisoning, falsely detaining and/or maliciously prosecuting the Plaintiff.

114. That said acts constituted an illegal seizure of the Plaintiff and deprived the Plaintiff of his rights and liberties as set forth in the 4<sup>th</sup> and 14<sup>th</sup> Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.
115. That said acts constituted acts of cruel and unusual punishment and deprived the Plaintiff of her rights and liberties as set forth in the 8<sup>th</sup> and 14<sup>th</sup> Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
116. That said acts constituted acts that violated the Plaintiff's freedom of speech as protected under the 1<sup>st</sup> and 14<sup>th</sup> Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
117. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements, and such acts deprived Plaintiff of her rights and liberties as set forth in the 5<sup>th</sup> and 14<sup>th</sup> Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
118. That Plaintiff, as an African American female, was deprived of her right to equal protection under the law and was targeted and her rights violated based on his race, a violation of the Equal Protection Clause under the 14<sup>th</sup> Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
119. That the Officers conspired by and through their conduct, including, among other things, their overt acts, their failure to intervene, stop and report, threatening witnesses, and the falsification of reports and evidence to deprive or hinder the Plaintiff's right to justice, and to injure her.
120. Upon information and belief, Police Officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.
121. The Officers herein conspired to deprive the Plaintiff of equal protection under the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.
122. That the Plaintiff's false detention, arrest, imprisonment, battery, assault and violation of her constitutional rights resulted from the Defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and/or police practices which included excessive use of force; illegal use of police equipment; failing to follow police



guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline Officers; engaging in illegal stop, question and frisks, permitting or condoning illegal stop, search and seizure of property and persons, any and/or all of the above contributing to Plaintiff's false arrest and prosecution, and injuries.

123. Defendants "Officers" actions on February 21, 2020 were performing under the color of law and the policies, statutes, ordinances, rules, practices and regulations of the City of New York, and they were performing to the detriment of the Plaintiff.
124. That Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, battered, assaulted, and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.
125. That by reason of the aforesaid, the Plaintiff was deprived of her liberty, lost income, battered, injured, and she was damaged.
126. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A TWELFTH THROUGH THIRTEENTH CAUSES OF ACTION:**  
**ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C.**  
**SECTION 1985, BY POLICE OFFICERS CARDENAS AND DOE IN THEIR**  
**INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK,**  
**THE PLAINTIFF ALLEGES:**

127. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "126" with the same force and effect as if more fully and at length set forth herein.
128. That at all times hereinafter mentioned, the Defendant "Doe" was employed by the Defendant the City of New York and/or the New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

129. That at all times hereinafter mentioned, the Defendant “Cardenas” was employed by the Defendant the City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
130. That at all times hereinafter mentioned, the “Defendants/Officers”, individually and collectively, were acting pursuant to orders and directives from Defendant “City”.
131. That during all times hereinafter mentioned, the “Defendants/Officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and conspired to engage in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived her of the rights, privileges and immunities secured to her by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985.
132. That the “Defendant/Officers” conspired to deprive Plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, to intimidate and threaten, to abuse, to degrade, to batter and to due process of law and equal protection of the law.
133. That by reason of the aforesaid violations such as, seizure and search of Plaintiff’s person, his false detention, battery assault, imprisonment and falsifying evidence, and discrimination, the “Defendants/Officers” violated Plaintiff’s rights and privileges as provided to her in the Constitution of the United States of America and provided to him in the Constitution of the State of New York, and laws thereto, “the Officers” and violated 42 U.S.C. §1985.
134. That as a direct proximate result of “Defendants/Officers” actions, the Plaintiff was detained, physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
135. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
136. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys’ fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A FORTTHEENTH THROUGH FIFTEENTH CAUSES OF  
ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS  
UNDER 42 U.S.C. SECTION 1986, BY POLICE OFFICERS “CARDENAS” AND  
“DOE” IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY  
OF NEW YORK, THE PLAINTIFF ALLEGES:**

137. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "136" with the same force and effect as if more fully and at length set forth herein.
138. That at all times hereinafter mentioned, the Defendant “Doe” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
139. That at all times hereinafter mentioned, the Defendant “Cardenas” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
140. That at all times hereinafter mentioned, the “Defendants/ Officers”, individually and collectively, were acting pursuant to orders and directives from Defendant, The City of New York.
141. That during all times hereinafter mentioned, the “Defendants/ Officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though she/he or they had the ability or power to prevent or aid in the preventing of the commission of the same the “Officers” neglected or refused to do so.
142. That the “Defendants/Officers,” each of them could have aided or prevented the seizure and search of Plaintiff’s person, the Plaintiff’s false detention, the battery, the assault, the imprisonment, the falsifying of evidence, and discrimination. The “Defendants/Officers” refused or neglected to do so, and thereby violated Plaintiff’s rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, the “Defendants/Officers” and violated 42 U.S.C. §1986.

143. That as a direct proximate result of “Defendants/Officers” actions Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

144. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

145. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys’ fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

**WHEREFORE**, the Plaintiff demand judgment against the Defendants on the First through Fifteenth causes of actions in a sum to be determined by the trier of fact, plus costs, attorney’s fees, punitive damages and such other relief as to the court seems just and proper on the first through sixth causes of action, and such further relief as to the court seems just and proper.

DATED: New York, New York  
January 27, 2021

/s/ ROYCE RUSSELL, ESQ.

Royce Russell, Esq.  
R-SQUARE, ESQ. PLLC  
112 West 34<sup>th</sup> Street 18Fl  
New York, NY 10120  
(718) 785-8890

**ATTORNEY'S VERIFICATION**

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons with Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York  
January 27, 2021

/s/ ROYCE RUSSELL, ESQ.  
By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

MARY POWER,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPT., POLICE OFFICER ANDREW CARDENAS,  
TAX ID #964423 AND POLICE OFFICER JOHN DOE (A FICTITIOUS NAME BECAUSE HIS IDENTITY IS  
UNKNOWN), BOTH INDIVIDUALLY AND AS POLICE OFFICERS OF THE 73RD PRECINCT,

Defendants.

## SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.

Attorney for Plaintiff

112 West 34<sup>TH</sup> Street Fl. 18

New York, NY 10120

(718) 785-8890

To: The City of New York  
c/o Office of the Corporation Counsel  
100 Church Street  
New York, NY 10007The New York City Police Department  
1 Police Plaza  
New York, New York 10038Police Officer Andrew Cardenas  
Tax ID #964423  
c/o 73rd Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212Police Officer John Doe  
(A Fictitious Name Because his Identity is Unknown)  
c/o 73rd Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State,  
certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are  
not frivolous.

Dated: January 27, 2021

Signature

/s/ ROYCE RUSSELL

Royce Russell, Esq.

## =====

## PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY  
that the within is a (certified) true copy of a                      duly entered in the office of the  
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT  
that a                      of which the within is a true copy  
will be presented for settlement to the HON.    one of the judges of the, on